



Bureau of Experts at the Council of Ministers
Official Translation Department

Environmental Law

Royal Decree No. M/165
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Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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Environmental Law

Chapter 1: General Provisions

Article 1

In this Law, the following terms and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

Law: Environmental Law.

Regulations: Implementing Regulations of the Law.

Ministry: Ministry of Environment, Water, and Agriculture.

Minister: Minister of Environment, Water, and Agriculture.

Competent Authority: The Ministry, or any national center of the environmental sector, each within its jurisdiction, as determined by the Regulations.

Supervisory Entity: Any government entity legally authorized to supervise a development sector, and issue licenses to engage in activities under its supervision.

Person: Any public or private natural or legal person.

Permit: A document granted by the competent authority to a person prior to engaging in any activity that has an environmental impact.

License: A document granted by the competent authority to permit a person to engage in an environmental activity.

Permit Holder: A person who holds a permit.

Licensee: A person who holds a license.

Environmental Activity: Any operational or technical activity related to the environmental sector.

Environmental Impact: Any negative or positive change that affects the environment as a result of engaging in any activity.

Environment/Environmental Mediums: Anything surrounding human beings, animals, plants, or any other living creature, including water, air, land, soil, living organisms, biodiversity, atmospheric gases and water bodies, as well as inanimate objects, various forms of energy, environmental habitats, and natural processes and their interactions with one another.

Environmental Sector: It includes environmental mediums and activities, and programs related thereto, that aim to ensure environmental protection and safety and the development of environmental mediums to ensure their sustainability and protection from any source of pollution.

Environmental Considerations: All matters to be taken into consideration upon planning any project, including environment-related laws, decisions, strategies, and programs.

Environmental Principles: Principles recognized by environment-related international organizations and conventions, that aim to protect the environment.

Natural Resources: All living and non-living things found in nature and their products, that are directly utilized by human beings, such as air, water, land, soil, biodiversity, and geological formations of environmental value.



Biodiversity: Diversity of species and numbers of plants, animals, or micro-organisms and variations therebetween.

Wildlife Organisms: Living or dead organisms, excluding humans or domesticated or tamed animals, that are scientifically classified as animal or plant populations.

Habitats: Sites where wildlife organisms naturally live, grow, or reproduce in a manner that is interrelated and integrated with their surroundings.

Wildlife: Wild plant and animal organisms and their habitats.

Protected Areas: Land, marine, or coastal sites designated by the competent authority for the protection and development of wildlife.

Derivative: Any item naturally or artificially extracted from wildlife organisms.

Product: Any part of a wildlife organism, whether unprocessed or partially or wholly processed.

Biological Control Methods: The use of biological systems, living organisms, or their derivatives to control pests and plant diseases.

Vegetation Cover: Natural plants, whether they be herbs, shrubs, or trees.

Vegetation Cover Lands: All state-owned lands that contain wild plants and the like. This includes pasture lands; forests; national, wildlife and geological parks; wetlands; flatlands; sandy areas (dunes); highlands; valleys; coastal areas; and islands.

Forests: A natural or cultivated vegetation consisting of one or several types of trees, shrubs, or herbs whether unmixed, or mixed with trees of a density not less than 10% of the site area.

Pastures: Lands that are wholly or partially covered with naturally-grown indigenous or exotic plants, including herbs, shrubs, or trees, that vary in their suitability for grazing and animal feeding, including degraded pastures that have been re-cultivated with grazing plants, and that are located on lands not utilized for cultivation, housing, or public utilities.

Trees: Any naturally-grown or cultivated tree with a wooden or air root that rises 1.5 meters or more above the ground.

Shrubs: Any naturally-grown or cultivated plant with a height ranging from 0.5 meter to less than 1.5 meters.

National, Wildlife, and Geological Parks: Sites within the vegetation cover lands with unique environmental or geological characteristics that have been developed for their conservation and the promotion of ecotourism.

Marine and Coastal Environment: Marine areas, coastal areas, and islands, or any of their natural components, including trees, shrubs, plants, herbs, algae, coral reefs, marine organisms, or microorganisms, and the like.

Water Resources: Renewable and non-renewable surface and groundwater, including rainwater as well as waters of wells, springs, and dams.

Water Bodies: Accumulation of water aboveground or underground, including oceans, seas, lakes, ponds, wetlands, and other geographical features wherein water moves from one place to another.

Environmental Protection: Preserving the environment, that includes preventing pollution and mitigating its effect, reducing environmental degradation, and ensuring sustainable development by adhering to environmental standards, criteria, and preventive or remedial measures in accordance with this Law and the regulations.



Air Quality: The characteristics of air according to standards and criteria set by the competent authority for the protection of the environment and human health.

Environmental Pollution: The existence of one or more substances or factors in certain quantities or qualities for a period of time that directly or indirectly harm the environment.

Liquid Components: Any liquid or oily substance that causes pollution to an environmental medium.

Pollutants: Any solid, liquid, or gaseous material, as well as smoke, fumes, emissions, noise, lighting, or any other natural or man-made impact that directly or indirectly leads to environmental pollution or degradation.

Emissions: The release of suspended particles or gases into the air from a specific source.

Environmental Measurements: Limits or percentages of concentration of pollutants or emissions that may not be exceeded to ensure the quality of environmental mediums.

Hazardous Waste: Waste that causes harm to the environment, its components, and human health; and that retains hazardous or infectious properties, such as high toxicity, explosivity, or reactivity; and that may not be used unless treated in accordance with special requirements.

Environmental Harm: Any negative impact on the environment that directly or indirectly reduces its environmental or economic value, affects the possibility of benefiting therefrom, changes its nature, or affects the natural balance between its elements.

Environmental Degradation: Any severe harm to the environmental mediums resulting from the depletion of natural resources, destruction of habitats, extinction of wildlife, or pollution thereof, and deterioration of the quality of air, water, or soil.

Environmental Disaster: Any situation or accident resulting from a natural or man-made act, that jeopardizes environmental habitats or causes damage to the environment; requires greater resources and more drastic measures than usually required in normal accidents; cannot be accommodated by the local capabilities; and necessitates the intervention and cooperation of the concerned authorities.

Ozone-Depleting Substances: Substances that are characterized by their chemical stability in the atmosphere close to the surface of the earth; contain one or more chlorine or bromine atoms, or both; and trigger reactions leading to chain reactions in the stratosphere, thus resulting in ozone depletion.

Wastewater: Used water that has changed in color, taste, smell, or level of hygienic or environmental safety; it includes water used for health, industrial, or agricultural purposes.

Treated Wastewater: Water treated at a wastewater treatment plant according to specific standards and criteria.

Water Injection: Pumping treated wastewater into aquifers.

Environmental Audit: An assessment of the results of an objective, systematic, periodic, and documented examination of the operational processes of a particular facility, prepared after the installation or during the operation of the facility, to ensure the facility's compliance with the environmental requirements, controls, standards, and criteria; to improve its environmental performance; and to ensure its compliance with the Law, regulations, license, and permit.

Strategic Environmental Assessment: A study to identify, assess, and evaluate the environmental impact that may result from policies, strategies, plans, and programs at the level of sectors and regions that the government agencies propose to allocate to a development or humanitarian sector, in order to integrate and include all environmental considerations along with economic and social considerations.



Environmental Impact Assessment: A study to identify, assess, and evaluate the environmental impact that may result from the establishment, operation, modification, or dismantling of any project or activity in order to integrate and include all environmental considerations along with economic, social, and security considerations, and to identify the alternatives and the procedures necessary for the protection of the environment.

Compensation: Payments made by a person who causes environmental harm, pollution, or degradation to remedy or remove the damage caused thereby, including rehabilitation costs in case of failure to undertake the rehabilitation.

Rehabilitation: Any action performed on a site that has sustained environmental degradation, harm, or pollution to restore it to its natural state, according to the criteria prescribed by the competent authority.

Ecotourism: An environment-friendly tourist activity that preserves the natural and cultural heritage of the environment.

Article 2

The Law aims to protect, develop, and sustain the environment; adhere to environmental principles; and regulate the environmental sector and related activities and services.

Article 3

Engaging in an environmental activity or an activity that has an environmental impact without a permit or license shall be prohibited, as specified by the regulations.

Article 4

A holder of a license or permit shall comply with this Law, the regulations, and the terms and conditions of the permit or license, as well as relevant instructions and decisions issued by the competent authority.

Article 5

The competent authority shall set the rules for the implementation of the environmental programs, plans, and voluntary initiatives.



Chapter 2: Protection of Environmental Mediums and Water Resources

Article 6

Any activity that may pollute, harm, or adversely affect the use of environmental mediums and water resources shall be prohibited, as specified by the regulations.

Article 7

No person may –without obtaining a permit or license in accordance with the regulations– use, transfer, store, sell, or promote natural resources or their products that are found in the territory of the Kingdom, including its mainland, islands, and airspace, as well as its internal waters and territorial sea and their seabed, subsoil, and airspace, in addition to all other maritime areas over which the Kingdom exercises sovereignty or jurisdiction under International Law.

Article 8

A holder of a license or permit who engages in activities that may result in the release of emissions or pollutants or may affect environmental mediums shall:

1. comply with the environmental requirements, rules, procedures, standards, and measurements specified by the regulations;
2. take the necessary measures and procedures when approaching the limits of environmental measurements, as specified by the regulations;
3. develop programs and devices for detection and measurement, and for monitoring the quality of environmental mediums, as specified by the regulations;
4. provide the competent authority periodically with data and reports relating to emissions or pollutants resulting from the activities he engages in to review and verify their conformity, and determine any violation of measurements, standards, and requirements, as specified by the regulations;
5. provide the competent authority with the environmental audit, as specified by the regulations; and
6. rehabilitate environmental mediums that have degraded as a result of his activities, as specified by the regulations.

The competent authority shall determine the activities referred to in this Article.

Article 9

1. Any person who engages in any activity that involves the use of substances that adversely affect air quality, or ozone-depleting substances shall take the necessary measures to implement the competent authority's plans for the gradual elimination of such substances, in accordance with the regulations.
2. The competent authority shall specify the substances that adversely affect air quality and depletes the ozone layer.



Article 10

1. Ozone-depleting substances, as specified by the competent authority, may not be imported, exported, re-exported, circulated, manufactured, or used without obtaining a permit or license, as specified by the regulations.
2. New or recycled devices, equipment, and products that contain any of the substances referred to in paragraph (1) of this Article may not be imported, exported, re-exported, manufactured, or used without obtaining a permit or license, as specified by the regulations.
3. Materials, devices, equipment, and products referred to in paragraphs (1) and (2) of this Article shall be disposed of, as specified by the regulations.
4. Used devices, equipment, and products that contain any of the substances referred to in paragraph (1) of this Article may not be imported.

Article 11

Wastewater or any treated liquids may not be discarded, discharged, or injected into underground wells or any environmental mediums without obtaining a permit, as specified by the regulations.

Chapter 3: Vegetation Cover Lands

Article 12

1. Forest lands, pasture lands as well as lands of national, wildlife, or geological parks may not be disposed of in any way that entails a transfer of ownership.
2. Forest lands, pasture lands as well as lands of national, wildlife, or geological parks may not be encroached upon, whether by expansion or by construction.

Article 13

1. National, wildlife, and geological parks shall, pursuant to a decision by the Minister, be established on lands not privately owned and over which no one has a legal interest, concession, or attachment. Otherwise, the plan for the proposed park shall be modified, or another area shall be designated, unless the rightful holder relinquishes his right, as specified by the regulations.
2. The competent authority may, in accordance with controls set by the regulations, invest and regulate investment in national, wildlife, and geological parks.

Article 14

A person shall obtain a permit prior to removing or exploiting sand, gravel, rocks, or mud, as specified by the regulations.

Article 15

Without prejudice to the provisions of Article 14 of this Law, agricultural lands and vegetation cover lands may not be reclaimed or leveled without obtaining a license, as specified by the regulations.



Article 16

1. Engaging in any activity or operation on the vegetation cover lands without a permit or license shall be prohibited, as specified by the regulations.
2. Engaging in any activity or operation on lands within urban limits that contain vegetation cover falling within the jurisdiction of the competent authority without a permit or license shall be prohibited, as specified by the regulations.

Article 17

A holder of a license or permit shall, upon using vegetation cover lands in carrying out his activities, take environmental considerations into account and adhere to rational use of soil, as specified by the regulations.

Article 18

Cultivation and tree planting within the vegetation cover lands without obtaining a license shall be prohibited.

Article 19

Subject to the provisions of Article 18 of this Law, any action that causes harm to the vegetation cover lands or disrupts their natural balance shall be prohibited, particularly:

1. cutting down, uprooting, or transporting trees, shrubs, herbs, or plants; removing their bark, leaves, or any part thereof; transferring or dredging their soil; or trading therein;
2. littering therein; or burying, burning, or disposing of waste in places other than those designated by the competent authority;
3. setting fire in places other than those designated by the competent authority;
4. destroying fixed or movable facilities; cutting or damaging fences erected by the competent authority therein; or tampering with their boundary markers or signposts;
5. grazing on sites or during periods prohibited by the competent authority; and
6. introducing any type of exotic or invasive animal wildlife species.

Article 20

Producing, transporting, storing, selling, or promoting local firewood or coal without a permit or license shall be prohibited, as specified by the regulations.



Chapter 4: Marine and Coastal Environment

Article 21

1. Engaging in any activity that harms the marine and coastal environment and its living and non-living components, including excavating, landfilling, dredging, constructing, prospecting, exploring, exploiting, or conducting research, without a permit or license shall be prohibited, as specified by the regulations.
2. Using, introducing, or removing any materials or tools that cause harm to the marine and coastal environment without a permit or license shall be prohibited, as specified by the regulations.
3. The competent authority shall specify the materials and tools referred to in paragraph (2) of this Article.

Article 22

An operator of maritime means of transport shall maintain a manual for preventive procedures and measures, as well as an emergency plan for the prevention of pollution, as specified by the regulations.

Chapter 5: Wildlife

Article 23

The competent authority shall specify the types of endangered wildlife species that are prohibited from being killed, hunted, or traded in or in their derivatives or products.

Article 24

1. Engaging in any act that relates to the types of wildlife species specified by the competent authority without a license shall be prohibited, including:
 - a) trading in any wildlife species, or their products or derivatives, whether locally or through import or export;
 - b) land, air, or maritime transit of wildlife species, or their products or derivatives;
 - c) transporting wildlife species, or their products or derivatives within the Kingdom;
 - d) removing or introducing wildlife species, or their products or derivatives from or into the maritime or coastal environment;
 - e) selling or offering for sale any wildlife species, or their products or derivatives by any means; and
 - f) possessing, accommodating, or cultivating any wildlife species, or their products or derivatives.
2. Engaging in any act that relates to the types of living wildlife animal species specified by the competent authority without a license shall be prohibited, including:
 - a) keeping any living wildlife species in a wholly or partially-controlled place; and
 - b) using any of such species in shows and events.
3. The regulations shall specify the necessary rules for the implementation of this Article.



Article 25

Subject to Article 24(1) of this Law, exporting or re-exporting, for non-commercial purposes, any type of wildlife species, or their products or derivatives, as specified by the competent authority without obtaining its approval shall be prohibited.

Article 26

Killing or harming living wildlife animal species, excluding animals that may be killed in specific cases, shall be prohibited, as specified by the regulations.

Article 27

Hunting living wildlife animals shall be prohibited. However, certain species may be hunted upon obtaining a license, taking the following into consideration:

1. Hunting shall be restricted to the species specified by the competent authority.
2. Hunting shall be confined to places and times specified by the competent authority.
3. Refraining from attracting animals and birds, or using means leading to mass hunting.

The regulations shall specify necessary rules, including permissible hunting methods.

Article 28

Bringing into the Kingdom or using any biological control methods without a license shall be prohibited, as specified by the regulations.

Chapter 6: Protected Areas

Article 29

1. Protected areas shall, pursuant to a Council of Ministers' resolution issued upon a recommendation by the competent authority, be established on a land not privately owned and over which no one has a legal interest, concession, or attachment. Otherwise, the plan of such protected area shall be modified, or another area shall be designated, unless the rightful owner relinquishes his right, as prescribed by the regulations.
2. The competent authority shall invest and regulate investments in protected areas, in accordance with the regulations.

Article 30

Engaging in any activity within the limits of the protected areas without a permit or license shall be prohibited, as specified by the regulations.

Article 31

The competent authority shall, in coordination with the Ministry of Interior, set the rules for accessing protected areas or using such areas for grazing, ecotourism, research, and the like, depending on the nature of each protected area and in line with the objectives of this Law.



Article 32

Any act that harms protected areas or disrupts their natural balance shall be prohibited, particularly the following:

1. Harming their living or non-living components.
2. Cutting down, uprooting, or transporting trees, shrubs, herbs, or plants; removing their bark, leaves, or any part thereof; transferring or dredging their soil; or trading therein.
3. Setting fire in places other than those designated by the competent authority.
4. Littering therein; or burying, burning, or disposing of waste in places other than those designated by the competent authority.
5. Grazing or cultivating on sites or at periods other than those designated by the competent authority.
6. Cultivating or introducing any type of exotic or invasive wildlife species into protected areas or their surroundings.
7. Destroying fixed or movable installations therein; cutting or damaging fences erected by the competent authority inside or around them; or tampering with their boundary markers or signposts.
8. Driving vehicles, and the like, on non-designated paths.

Chapter 7: Environmental Disasters and Emergencies

Article 33

1. The personnel of the competent authority shall not be liable for any environmental harm not caused by an intentional act or by negligence during the removal of contamination resulting from environmental disasters and emergencies.
2. The exemption stated in paragraph (1) of this Article shall not prejudice the aggrieved party's right to claim compensation for civil liability.

Article 34

The Minister may take the necessary procedures and measures to respond to any environmental emergency or disaster, or any imminent threat to the environment, and to mitigate the effects of any of the above, in coordination with the relevant agencies.



Chapter 8: Violations: Detection and Penalties

Article 35

Any of the following acts shall be deemed a violation of this Law:

1. Discarding, discharging, or injecting any untreated wastewater or liquids into underground wells, environmental mediums, or the outcrops of aquifers for any reason.
2. Dumping or discharging any pollutants resulting from ballast water, cargo residues, wastes, liquids, and degradation of anti-fouling materials, by maritime means of transport.
3. Disposing of hazardous waste in environmental mediums.
4. Killing or hunting endangered wildlife species and trading in them, their derivatives, and products.

Article 36

1. Inspectors appointed pursuant to a decision by the Minister or the chairman of the board of directors of the competent authority, as the case may be, shall collectively or individually detect, investigate, and record violations of this Law and regulations. The regulations shall determine the inspectors' work procedures, without prejudice to the provisions of paragraph (2) of this Article and Article 42 of this Law.
2. The inspector shall coordinate with the supervisory authority prior to accessing any facility for the purpose of inspection, review of its records and data, and detection of any violations. The regulations shall determine the necessary procedures and classification of the facilities covered by this paragraph.
3. The inspector shall have the power to:
 - a) collect samples of materials and items from the facility suspected of violating this Law and the regulations, if necessary, provided a report that includes all data necessary to indicate the source of the samples, materials, and items is prepared, and a copy of the facility's records and data is retained, as specified by the regulations;
 - b) retrieve and deal with the seized products of the vegetation cover or wildlife, as specified by the regulations, without prejudice to the penalties prescribed in Articles 38 and 40 of this Law; and
 - c) seize, at the expense of the violator if the violation is established, the vehicles and tools used, or suspected to have been used, in committing the violation, and hand them over to the competent authority as seized items, provided the matter is brought before the competent court within a period not exceeding seven days, to uphold or cancel the seizure, as specified by the regulations.
4. An inspector shall not be prevented or impeded from carrying out inspection and seizure duties, and shall present his job identification card when doing so.
5. Without prejudice to paragraph (2) of this Article and subject to the regulations, the Minister or the board of directors of the competent authority, as the case may be, may issue a decision to outsource to specialized companies certain inspection and violation detection tasks of an administrative nature.



Article 37

Without prejudice to Article 36 of this Law, the Ministry of Interior shall, in coordination with the competent authority, undertake the following:

1. Carry out security control to ensure compliance with environmental regulations, and take all necessary security measures to prevent any violation of this Law.
2. Apprehend the violators of this Law and the regulations, and refer them to the relevant authority to enforce applicable legal procedures against them.
3. Provide security support, upon request, to the inspectors referred to in Article 36 of this Law, with regard to inspection and violation detection.

Article 38

1. Without prejudice to the provisions of Articles 40 and 43 of this Law, or any harsher penalty stipulated by any relevant law, any person who violates this Law and the regulations shall be subject to one or more of the following penalties:
 - a) A fine not exceeding 20,000,000 riyals.
 - b) Suspension of his license or permit for a period not exceeding six months.
 - c) Revocation of his license or permit.
2. The Minister shall, in coordination with the competent authority, issue a decision for the classification of violations and corresponding penalties as stipulated in this Article, taking into consideration the nature and gravity of each violation, as well as aggravating and mitigating circumstances.
3. The committees referred to in Article 39(2) of this Law may:
 - a) impose a fine for each day the violation continues after notifying the violator of the committee's decision, provided the fine is calculated from the date set in the decision;
 - b) double the imposed penalty prescribed in paragraph (1)(a) and (b) of this Article in case of recidivism within one year from the date on which the previous penalty decision becomes final, except for the violations provided for in Article 40(2) of this Law;
 - c) include in the penalty decision a provision to publish its summary at the expense of the violator in a local newspaper published in his area of residence, or, if none is available, in a newspaper published in the nearest area of his residence or in any other appropriate medium, depending on the type, gravity, and impact of the violation. The summary shall be published after the decision becomes unappealable upon the lapse of the statutory period for appeal, or if the judgment rendered thereon is final; and
 - d) petition the competent court to order the confiscation of the seized items subject of the violation.

Article 39

1. Without prejudice to paragraph (2) of this Article and Article 41 of this Law, the competent authority shall impose a fine not exceeding 100,000 riyals, in accordance with the violation classification table referred to in Article 38(2) of this Law.
2. Without prejudice to paragraph (1) of this Article and Article 41 of this Law, consideration of the violations of this Law and the regulations, imposition of the penalties stipulated in Article 38 hereof, and review of the objections submitted by the concerned parties regarding the fines



imposed by the competent authority in accordance with paragraph (1) of this Article shall be made by committees formed pursuant to a decision by the Minister. Each committee shall be composed of at least three members for a renewable term of three years. The formation decision of each committee shall designate its chairman, provided he is a specialist in Sharia or law. Committee decisions shall be reasoned and shall be passed by majority vote. Decisions providing for fines exceeding 5,000,000 riyals or the revocation of the license or permit shall be approved by the Minister or the chairman of the board of directors of the relevant center, as the case may be.

3. The regulations shall determine the committee's work rules and procedures, and the remuneration of its members.
4. Committee decisions may be appealed before the administrative court.

Article 40

Without prejudice to any harsher penalty provided by relevant laws, a person shall be punished by imprisonment for a term not exceeding 10 years and a fine not exceeding 30,000,000 riyals, or by either penalty, if he:

1. commits any of the acts stipulated in Article 35 of this Law;
2. repeats any of the following violations within one year:
 - a) cutting down, uprooting, or transporting trees, shrubs, herbs, or plants; removing their bark, leaves, or any part thereof; transferring or dredging their soil; or trading therein; and
 - b) killing any living wildlife animal, in violation of Article 26 of this Law.

Article 41

Without prejudice to Article 43 of this Law, the competent court shall consider the violations referred to in Article 40 of this Law, and shall impose the prescribed penalties; it may also:

1. render a judgment to confiscate the seized items subject of the violation;
2. seize a ship suspected of committing a violation of this Law and the regulations for a period not exceeding 90 days, and may issue a judgment to confiscate such ship if the violation is established;
3. impose a fine for each day the violation continues after informing the violator of the judgment rendered against him, and the fine shall take effect from the date set by the judgment;
4. double the fine imposed on the violator in case of recidivism within one year from the date on which the previous penalty decision becomes final; and
5. include in the judgment a provision to publish its summary at the expense of the violator in a local newspaper published in his area of residence, or, if none is available, in a newspaper published in the nearest area of his residence or in any other appropriate medium, depending on the type, gravity, and effect of the violation, provided the summary is published after the judgment become final.

Article 42

The Public Prosecution shall, in accordance with its law, investigate and prosecute before the competent court violations referred to in Article 40 of this Law.



Article 43

A violator shall rectify the effects of a violation, undertake rehabilitation, and pay compensations, as specified by the regulations.

Article 44

The Minister or the chairman of the board of directors of the competent authority, as the case may be, or his designee, may, upon coordination with the supervisory entity, take a preventive measure to, partially or wholly, suspend the activity for a period not exceeding 15 days upon detecting a violation requiring urgent action to avert an environmental disaster, and refer the violation to the competent court or the committee referred to in Article 39(2) of this Law, as the case may be, within five days from the date of suspension. The court or the committee, as the case may be, shall consider, within a period not exceeding 10 days from the date of referral, the continuation of the suspension. The Regulations shall determine the necessary procedures.

Chapter 9: Concluding Provisions

Article 45

The lending funds shall take into account the environmental impact of projects they fund or provide loans to.

Article 46

1. Without prejudice to paragraph (2) of this Article, this Law shall apply in cases where the law is silent, provided they do not prejudice other provisions of this Law.
2. This Law and the regulations shall constitute the minimum standard of compliance for environmental protection and sustainability.
3. The application of this Law shall not prejudice the Kingdom's obligations under relevant international conventions to which it is party, nor the laws issued by the Cooperation Council for the Arab States of the Gulf.

Article 47

The regulations shall specify the following:

1. The rules and procedures for the application of environmental principles.
2. The conditions, rules, procedures, measurements, and standards necessary for the protection, development, and rehabilitation of environmental mediums.
3. The conditions and procedures necessary for the management and investment of pasture and forest lands.
4. The conditions, rules, and procedures related to:
 - a) receiving reports on environmental emergencies and disasters, and responding thereto within the jurisdiction of the relevant agency;
 - b) monitoring environmental compliance and inspection;



- c) measuring and monitoring noise pollution;
 - d) managing marine and coastal environment with regard to environmental aspects;
 - e) hunting living wildlife animals;
 - f) conducting strategic environmental assessments;
 - g) conducting environmental impact assessments;
 - h) conducting environmental audit;
 - i) all types of permits and licenses required for the environmental sector and activities having environmental impact; and
 - j) disseminating environmental information and data.
5. Environmental requirements and rules for water injection.
 6. Rules and procedures for determining the fees for each type of permit or license, and for services related to the environmental sector.
 7. Rules for determining compensation.
 8. Rules and procedures for devising an environmental emergency and disaster response plan.

Article 48

The Minister shall issue the regulations within a period not exceeding 180 days from the date of publication of this Law in the Official Gazette, and shall enter into force on the date this Law becomes effective.

Article 49

This Law shall enter into force 180 days following the date of its publication in the Official Gazette.



Appendix

Amendments

November 28, 2023 (Jumada I 14, 1445H)

Council of Ministers Resolution No. 406 provides for the following:

- Adding the phrase the "General Organization for Conservation of Coral Reefs and Turtles in the Red Sea" to the definition of "Competent Authority" mentioned in Article 1. The definition shall read as follows:

"Competent Authority: The Ministry or any national center of the environmental sector or the General Organization for Conservation of Coral Reefs and Turtles in the Red Sea, each within its jurisdiction, as determined by the Regulations".